

REQUEST TO IMPLEMENT MANDATORY CLOSURE AND CORRECT PUBLIC-ACCESS STATUS

To: the office of the District Court, East Central Judicial District
for Cass County, North Dakota

From: Maria-Alejandra O'Shaughnessy-Whitfield
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Re: request to implement mandatory closure under N.D.C.C. Sec. 12-60.1-05, and to correct the
public-access status of the record

Case number of the original criminal case: 09-2025-CR-987654

Whole-case qualifying disposition: The defendant was acquitted of all criminal charges in this case.
Date the order of nonconviction was entered: 2025-08-04

Day 61, after excluding the entry date: 2025-10-04
Rule 45 adjusted expiration: 2025-10-06
LegalEase first public-access check (next business day; product step, not added statutory time):
2025-10-07

Deadline verification method: CALLER_SUPPLIED_COMPLETE_ND_CALENDAR
Calendar/deadline verification source: caller-supplied verified North Dakota court calendar for October
4-8, 2025

Appeal gate: The case was never appealed.
Statutory-exception gate: The disposition was not a dismissal in a plea agreement involving another
conviction, was not based on unfitness to proceed, and was not an acquittal based on lack of criminal
responsibility.

1. Under N.D.C.C. Sec. 12-60.1-05, this whole case qualifies for closure after 61 calendar days from entry
of the order of nonconviction. The entry date was excluded; no mail-service days were added; and a
weekend or verified legal-holiday last day was extended under Rule 45. Nothing was filed to obtain
automatic closure.

2. The record was checked on 2025-10-07, no earlier than the product first-check date, and remained
publicly accessible. Evidence attached: Dated October 7, 2025 public-index printout showing the case
remained publicly accessible.

3. I therefore ask this office to implement the mandatory closure the statute directs, and to correct the
public-access status of the record. If this office's position is that judicial action is required, please say so
in writing.

DATE SIGNATURE

(You sign and date this request personally. Nothing on this page is signed or dated for you.)

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd_still
_public_day_62:written_clerk_correction_request

MOTION TO ENFORCE MANDATORY CLOSURE UNDER N.D.C.C. SEC. 12-60.1-05

USE THIS PAGE ONLY AFTER THE WRITTEN REQUEST. The recorded sequence is: first the written request to the office of the court in the original criminal case; then this motion, only if that office states that judicial action is required or does not correct the record. If your request corrected the record, do not file this motion.

IN THE District Court, East Central Judicial District
FOR Cass County, North Dakota

STATE OF NORTH DAKOTA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case number of the original criminal case: 09-2025-CR-987654

MOTION TO ENFORCE MANDATORY CLOSURE UNDER N.D.C.C. Sec. 12-60.1-05

1. The defendant, Maria-Alejandra O'Shaughnessy-Whitfield, states: The defendant was acquitted of all criminal charges in this case. The order of nonconviction was entered on 2025-08-04. The case was never appealed. The disposition was not a dismissal in a plea agreement involving another conviction, was not based on unfitness to proceed, and was not an acquittal based on lack of criminal responsibility.

2. Excluding the entry date, day 61 was 2025-10-04; the Rule 45 adjusted expiration was 2025-10-06. No mail-service days were added. The LegalEase next-business-day check on 2025-10-07 is a product step, not additional statutory time.

Deadline verification method and source: CALLER_SUPPLIED_COMPLETE_ND_CALENDAR;
caller-supplied verified North Dakota court calendar for October 4-8, 2025

3. The record was checked on 2025-10-07 and remained publicly accessible. Evidence attached: Dated October 7, 2025 public-index printout showing the case remained publicly accessible.

4. A written request to implement closure was made first. Office response: The clerk's office did not correct the public-access status after receiving the written request; the request and delivery record are attached.

5. The defendant asks the Court to enforce the mandatory closure that N.D.C.C. Sec. 12-60.1-05 directs, and to order the public-access status of the record corrected. A proposed order accompanies this motion.

DATE SIGNATURE OF DEFENDANT

(The defendant signs and dates this motion personally.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Sheyenne Crossing Road, Apartment 14B, Fargo, North Dakota
58103-2214

TELEPHONE: (701) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd_still
_public_day_62:original_case_enforcement_motion

PROPOSED ORDER ENFORCING MANDATORY CLOSURE UNDER N.D.C.C. SEC. 12-60.1-05

IN THE District Court, East Central Judicial District
FOR Cass County, North Dakota

STATE OF NORTH DAKOTA,
PLAINTIFF,

v.

Maria-Alejandra O'Shaughnessy-Whitfield,
DEFENDANT.

Case number of the original criminal case: 09-2025-CR-987654

PROPOSED ORDER

This matter came before the Court on the defendant's Motion to Enforce Mandatory Closure Under N.D.C.C. Sec. 12-60.1-05. The Court, having considered the motion,

ORDERS that

(EVERY DECISION ON THIS PAGE IS THE COURT'S. This proposed order travels with the motion for the Court's convenience; nothing on it is completed, decided, signed or dated by the defendant or by this packet.)

DATED

.....
(The court signs here if, and only if, it grants the motion.)

Route:
obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd_still
_public_day_62:original_case_enforcement_motion

FILING INSTRUCTIONS

This packet is prepared for correcting a qualifying North Dakota non-conviction court record that remains public after the Rule 45 adjusted period and the next-business-day product check.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

THE ONE SITUATION THIS PACKET IS FOR

VERIFIED CASE: The defendant was acquitted of all criminal charges in this case. Order entered 2025-08-04. The case was never appealed. The disposition was not a dismissal in a plea agreement involving another conviction, was not based on unfitness to proceed, and was not an acquittal based on lack of criminal responsibility.

VERIFIED TIMING: day 61 was 2025-10-04; Rule 45 adjusted expiration 2025-10-06; LegalEase first public-access check 2025-10-07. The check is a product step, not extra statutory time. No mail-service days were added.

VERIFIED FAILURE: checked 2025-10-07; Dated October 7, 2025 public-index printout showing the case remained publicly accessible.

WHAT YOU DO, IN ORDER

STEP ONE. Confirm the complete case record shows every charge dismissed or every charge acquitted, no appeal history, and none of the stated statutory exceptions. A mixed, partial, appealed, excluded or unknown case stops.

STEP TWO. Use the order-entry date. Exclude that date, count 61 calendar days, extend a weekend or verified legal-holiday last day, and do not add mail-service days. Check on the next business day after the adjusted expiration; this is a product step, not added statutory time.

STEP THREE. If the record is still public, complete and send the **WRITTEN REQUEST** to the office of the court in the original criminal case. Ask that office how it accepts delivery, and use that method.

STEP FOUR. Only if that office states that judicial action is required, or does not correct the record, complete and file the **ENFORCEMENT MOTION** in the original criminal case, with the unsigned proposed order. Ask the office of that court whether a filing fee applies - no committed record this packet is built from states one.

STEP FIVE. Sign and date each page yourself.

WHAT THIS PACKET DELIBERATELY DOES NOT COVER

- The automatic closure itself. Nothing is filed to obtain it.
- Orders entered before August 1, 2025. They remain on the official petition route, a different instrument.
- Mixed or partial case dispositions, any appeal history, a stated statutory exception, or any unknown gate.
- BCI or originating-agency history correction. Closing the court record does not correct an agency history; that is a separate challenge to that agency, and the record states the two must not be presented as one step.

- Contested eligibility. The recorded rule: a contested eligibility question is individualized advocacy. Take it to a lawyer.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- eligibility for the closure is contested;
- the order-entry date is before August 1, 2025;
- any whole-case, appeal, statutory-exception, calendar or public-access gate is unknown;
- the first-check date has not arrived or the record is not public after the period;
- an agency history still shows the matter after the court record closes;
- any immigration question is involved.

WHAT THIS PACKET IS NOT

This is a prepared set of composed correction instruments for one recorded failure branch. It is not legal advice, it is not filed for you, and it does not decide whether the record qualifies or whether any court will act on it.

Route:

obligation:failure-disposition:ND:non-conviction-court-record-closing-under-n-d-c-c-12-60-1-05:nd_still_public_day_62:written_clerk_correction_request